

Vasnav Devi Aatta Chakki v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 18 February 2026 · Writ - C No. 6472 of 2026 · **Listed 26.02.2026; respondents to obtain instructions**

HEADNOTE

Writ challenging a Rs. 36,759.15 electricity demand said to have been raised without criminal implication for theft/unauthorized use and without a provisional assessment notice, contrary to the U.P. Electricity Supply Code, 2005. Respondents granted time for instructions; no merits finding.

FACTUAL SUMMARY

The petitioner, Vasnav Devi Aatta Chakki, approached the Allahabad High Court against Purvanchal Vidyut Vitran Nigam Ltd. challenging a demand of Rs. 36,759.15 towards electricity dues. Counsel contended that the petitioner had not been implicated in any criminal case for alleged theft of electricity resulting in unauthorized use, and that no provisional assessment notice had been issued before fastening the liability. Violation of natural justice and non-compliance with the U.P. Electricity Supply Code, 2005 procedure was pleaded. Counsel for the distribution company sought time to obtain instructions.

HOLDING-UNITS

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The Division Bench granted the licensee time to obtain instructions and listed the writ on 26.02.2026. No finding was recorded on the demand, the alleged absence of a criminal case or provisional assessment notice, or Supply Code 2005 compliance. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED —

¶ 2

NOT DECIDED —

¶ 2

NOT DECIDED —

¶ 2